

24PSCV04256 24PSCV04256

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C08%2F06%2F2026

Source SHA-256: 1f84938299a51b18234aabe3ce2ad66cf3f8fcc87b955d79dc38553760ca4297

Case Number: 24PSCV04256 Hearing Date: August 6, 2026 Dept: G

Defendant

General Motors LLC's Motion to Compel Plaintiff Mitchell Orsatt's Appearance and Testimony at Deposition and Production of Documents and Request for Monetary Sanctions

Respondent:

Plaintiffs Mitchell Orsatt and Veronica Orsatt

Defendant

General Motors LLC's Motion to Compel Plaintiff Veronica Orsatt's Appearance and Testimony at Deposition and Production of Documents and Request for Monetary Sanctions

Respondent:

Plaintiffs Mitchell Orsatt and Veronica Orsatt

TENTATIVE

RULING

Defendant

General Motors LLC's Motion to Compel Plaintiff Mitchell Orsatt's Appearance and Testimony at Deposition and Production of Documents is deemed MOOT, and the Request for Monetary Sanctions is GRANTED.

Defendant

General Motors LLC's Motion to Compel Plaintiff Veronica Orsatt's Appearance and Testimony at Deposition and Production of Documents is deemed MOOT, and the Request for Monetary Sanctions is GRANTED.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On May 26, 2016, plaintiffs Michael Orsatt and Veronica Orsatt (collectively, the Orsatts) bought a truck manufactured by defendant General Motors LLC (GM).

On

December 11, 2024, the Orsatts filed the Complaint. On August 6, 2025, the Orsatts filed the operative Amended Complaint, alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); and (4) breach of the implied warranty of merchantability.

On

March 2, 2026, the court held an informal discovery conference and recommended that the Orsatts appear for their depositions.

On June 2, 2026, GM filed these motions to compel deposition. On July 21, 2026, the Orsatts filed the oppositions, and on July 29, 2026, GM filed the reply.

The

motions are set for hearing on August 6, 2026.

ANALYSIS

GM

moves to compel the Orsatts' depositions, and for each motion, GM requests monetary sanctions. For the following reasons, the motions to compel deposition are deemed MOOT, and the requests for sanctions are GRANTED.

Legal

Standard

If

a party, their agent, or their designee is served with a deposition notice, fails to serve a valid objection, and fails to appear for examination, proceed with the examination, or produce for inspection any document or tangible thing

described in the deposition notice, then the party serving the notice may move for an order compelling the deponent's attendance, testimony, and production. (See Code Civ. Proc., § 2025.450, subd. (a).)

The

motion to compel must set forth specific facts showing good cause justifying the production of the requested documents in the deposition notice. (Code Civ. Proc., § 2025.450, subd. (b)(1).) Good cause is construed liberally and has been found where documents are necessary for trial preparation. (See Associated Brewers Distributing Co. v. Super. Ct. (1967) 65 Cal.2d 583, 587.)

The motion must also "be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce document . . . by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Discussion

GM

served the Orsatts with deposition notices, including requests for production of the purchase contract, on January 12, 2026.

(Mot. Re: Mitchell Orsatt, p. 4; Mot. Re: Veronica Orsatt, p. 4.) Veronica Orsatt served an objection to her deposition on January 14, 2026 and failed to appear at her scheduled deposition on January 15, 2026. (Mot. Re: Veronica Orsatt, p. 4.) Mitchell Orsatt served objections to his deposition on January 15 and 21, 2026 and failed to appear at his scheduled deposition on January 22, 2026. (Mot. Re: Mitchell Orsatt, p. 4.)

The

Orsatts rescheduled their depositions, and GM served Veronica Orsatt and Mitchell Orsatt with their second deposition notices on January 29 and 30, 2026, respectively. (Mot. Re: Veronica Orsatt, p. 4; Mot. Re: Mitchell Orsatt, p. 4.)

The Orsatts served objections to their depositions on February 4, 2026 and failed to appear at their scheduled depositions on February 5, 2026. (Mot. Re: Mitchell Orsatt, p. 5; Mot. Re: Veronica Orsatt, p. 5.) The Orsatts rescheduled their depositions, and the parties informed the court that their depositions were scheduled for April 14, 2026. (Mot. Re: Mitchell Orsatt, p. 5; Mot. Re: Veronica Orsatt, p. 5; see 3/2/2026 Min. Order, p. 1.) GM served the Orsatts

with their third deposition notices on March 10, 2026. (Mot. Re: Mitchell Orsatt, p. 5; Mot. Re: Veronica Orsatt, p. 5.) The Orsatts rescheduled their depositions to a date when GM was unavailable, and the Orsatts failed to appear at their scheduled depositions on April 14, 2026. (Mot. Re: Mitchell Orsatt, p. 5; Mot. Re: Veronica Orsatt, p. 5.)

The

Orsatts do not contest GM's summary of their conduct regarding the depositions. (See *Moulton Niguel Water Dist. v. Colombo*

(2003) 111 Cal.App.4th 1210, 1215, stating that "[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.") Instead, the Orsatts

emphasize that GM conducted the Orsatt depositions on July 21, 2026. (Opp. Re: Mitchell Orsatt, pp. 2–4; Opp. Re: Veronica Orsatt, pp. 2–4.)

Since

GM was able to complete the Orsatt depositions, the court determines the motions to compel deposition are MOOT.

Nevertheless,

since the Orsatts failed to appear at their deposition as directed by the court and only agreed to participate in their depositions after GM filed these motions, the Code of Civil Procedure requires that the court impose monetary sanctions. (See Code Civ. Proc., §§ 2023.010, subds. (d), (g); 2025.450, subd. (g)(2).) GM's counsel charges a rate of \$350 per hour. (Caceres Decl., ¶ 16.) Based on counsel's representations, the court estimates that counsel reasonably spent 3.0 hours preparing for and appearing at the depositions which did not take place as noticed, 1.5 hours preparing for and appearing at the informal discovery conference, 1.0 hour scheduling the depositions, and 2.5 hours preparing the motions to compel for a total of eight (8) hours. (Caceres Decl., ¶ 16.) Eight (8) hours multiplied by a rate of \$350 equals \$2,800.00. Additionally, GM incurred court reporter fees of \$777.50 related to the January and April Orsatt depositions that did not proceed as noticed.

These fees multiplied by two equals \$1,555.00. (Caceres Decl., ¶ 16.) The \$2,800.00 attorney's fee plus the \$1,555.00 court reporter fee equals a sanction of \$4,355.00.

Therefore,

the court GRANTS the requests for sanctions in the amount of \$4,355.00.

CONCLUSION

For

these reasons, the discovery motions are deemed MOOT, but the requests for sanctions are GRANTED. Plaintiffs

Mitchell Orsatt and Veronica Orsatt are ORDERED to PAY sanctions in the amount of \$4,355.00 within thirty (30) days of service of this order.